Privacy Policy

hmvest.eu

Harmovest Capital.

HARMOVEST CAPITAL (CYPRUS) LTD
(former: GVD Korimcy Ltd) HE 416402
Authorized and regulated by the
Cyprus Securities and Exchange Commission

Privacy Policy

This Privacy Policy sets out the way Harmovest Capital (Cyprus) Ltd (former: GVD Korimcy Ltd) (hereinafter "The Company) collects, uses and manages personal information from its visitors, potential and active clients and clients who have terminated their business relationship with the Company who are accessing or using the Company's website(s) and mobile applications. The Company is committed to safeguard the information / Personal Data it collects, uses and/or holds in accordance with the provisions of the European General Data Protection Regulation EU 2016/679 (hereinafter 'GDPR') and any regulations of the Republic of Cyprus which implement or supplement the GDPR.

Personal Information

In order to receive more information, register for a demo account, open a trading account with us or for any other business relationship, you are requested to complete the Application Form. By completing the Application Form and providing your personal information, you enable us to evaluate the application and comply with laws and regulations governing the provision of financial services. The same information will be used by the Company to contact you regarding the offered services.

The Personal Data collected by the Company might include, but not limited to:

- Personal information you provide to us on applications and other forms, such as your name, surname, address, e-mail address, phone number, date of birth, gender, occupation and employment details;
- Financial information such as your income, assets and net worth;
- IP address
- Bank account, e-wallets and credit card details, tax information
- Documents that you provide to us to verify your identity, such as your passport/identity card, utility bills and/or bank statement or your company incorporation details.

The Company is obligated by the regulations of Cyprus Securities and Exchange Commission to keep your Personal Data on record for a period of five years which is calculated after the execution of the transactions or the termination of the business relationship or even longer if it is requested by the CySEC.

Use of Personal Data

The Company collects and process Personal Data which are required for the evaluation. Establishment and maintenance of the contractual relationship between the Company and the

Client and in order to comply with the applicable aforementioned data protection legislation and regulations governing the provision of investment services. In some cases, the Company may also process the Client's Personal Data to pursue its legitimate interests or those of third parties, provided that the Clients' interests and fundamental rights are not overridden by those of the Company or the third party.

The Company may use your personal information for one or more of the following purposes:

- to confirm/verify your identity;
- to assess your appropriateness/suitability to the products and services we provide;
- to process your transactions;
- to manage the account the Client holds with the Company;
- to provide you with transaction and post transaction related services;
- to inform you of products and/or services that may be of interest to you;
- to keep you updated on the issues that are relevant to your business relationship with us;
- to analyse statistical data to enable us to provide you with better products and/or services;
- to enhance the security controls of the Company's networks and systems;
- to identify, assess, mitigate, prevent and investigate fraudulent activity of any kind that is forbidden by the relevant legislation;
- to defend possible legal claims;

The Company needs to comply with the Anti-money Laundering regulations, therefore hard copies and/or in electronic format copies shall be retained as evidence. Also the measures that are taken by the Company in regards to your identity verification, source of income and wealth, monitoring of your transactions, telephone/text/e-mail communication, and transaction history must be kept to be able for the Company to demonstrate to the regulator that has acted in accordance with the legislation.

The Company will ask for the Client's consent in regards to the provision of marketing information in relation to the products and services offered. The Client consent is provided by signing the Client agreement between the contractual parties.

The Client may withdraw such consent at any given time by sending an email to dpo@hmvest.eu.

The Company shall not disclose to a third party, any of its clients' confidential information unless required to do so by a regulatory authority of a competent jurisdiction; such disclosure shall occur on a 'need-to-know' basis, unless otherwise instructed by a regulatory authority. Under such circumstances, the Company shall expressly inform the third party regarding the confidential nature of the information.

Cookies

Cookies are small text files, given ID tags that are stored on your computer's browser directory or program data subfolders. Cookies are created when you use your browser to visit a website that uses cookies to keep track of your movements within the site, help you resume where you left off, remember your registered login, theme selection, preferences, and other customization functions. The website stores a corresponding file (with same ID tag) to the one they set in your browser and in this file they can track and keep information on your movements within the site and any information you may have voluntarily given while visiting the website, such as email address.

Cookies are often indispensable for websites that have huge databases, need logins, have customizable themes, other advanced features.

Cookies usually don't contain much information except for the URL of the website that created the cookie, the duration of the cookie's abilities and effects, and a random number. Due to the little amount of information a cookie contains, it usually cannot be used to reveal your identity or personally identifying information.

There are two types of cookies: session cookies and persistent cookies. Session cookies are created temporarily in your browser's subfolder while you are visiting a website. Once you leave the site, the session cookie is deleted. On the other hand, persistent cookie files remain in your browser's subfolder and are activated again once you visit the website that created that particular cookie. A persistent cookie remains in the browser's subfolder for the duration period set within the cookie's file.

The Company's website uses cookies to provide the functionality you need to browse our site correctly.

The Company's website issues cookies upon landing on our website, unless the user has changed their cookie settings in their browser to refuse cookies. Please note that with cookies switched off, some areas of our website and services might not be made available to you.

The Company does not use cookies to personally collect information about you – the cookies that we use only collect anonymous information to optimize our services and do not collect personal information.

Disclosure of Personal Data

Any personal information is treated as confidential and may be shared within the Company and its partners to meet its contractual and legal obligations. Contractual relationships exist with the Company's partners aiming to safeguard the Client's personal data in accordance with the Data Protection Legislation. Our company partners maintain the privacy of your information to the same extent the Company does in accordance with the policy. Non-affiliated companies that assist the Company in providing services to you are required to maintain the confidentiality of such information and to use your personal information only in the course of providing such services for the purposes that the Company dictates and within the ambit of the applicable law.

Recipients of Personal Data may be for example:

- technological experts that appointed by the Company to support the smooth operation of our systems
- platform providers
- payment service providers/credit institutions for facilitating the incoming and outgoing payments of the Clients
- governmental authorities and regulatory bodies
- fraud prevention agencies, third party authentication service providers, verification/screening service providers
- data reporting service providers to meet our regulatory obligations
- external consultants
- Data Protection Officer of the Company who may be outsourced

Transfer Personal Data outside the European Economic Area

The Company's aim is to safeguard Personal Data when these are to be transferred outside the European Economic Area. According to GDPR, Personal Data can be transferred outside the European Economic Area if adequate protective measures established.

The Company takes appropriate protective measures if Personal Data are disclosed to a third party. The third parties that the Company may transmit Personal Data shall comply with the GDPR or the equivalent legislation of their home member state.

Personal Data Rights

The Client has the following rights in respect of his/her Personal Data in accordance with the GDPR:

- **Right of Access**: The Client has the right to be informed whether the Company is processing his/her Personal Data and if so, to provide the Client with a copy of that Data.

- **Right to rectification**: The Client can request to rectify his/her Personal Data in order to correct or complete the provided Personal Data.
- **Right to Erasure**: The Client can request to delete/remove his/her Personal Data under certain circumstances, for instance if his/her consent has been withdrawn.
- **Right to Restrict Processing**: The Client can request from the Company to restrict the processing of his/her Personal Data if it is not accurate, it has been used unlawfully or it is not relevant anymore but wish not to be deleted for any reason and waiting for the Company's confirmation to stop using his/her Personal Data.
- **Right to portability**: The Client can request to obtain his/her Personal Data in a readable format.
- **Right to Stop Processing**: The Client can request from the Company to stop processing his/her Personal Data, and the Company will do so if a) the Company cannot demonstrate compelling legitimate grounds for the processing or b) the Company is processing Client's Personal Data for marketing purposes.
- **Right to Withdraw Consent**: Withdraw consent at any time where we are relying on consent to process your Personal Data
- Right to complain: If the Client has grounds to believe that the Company does not appropriate use his/her Personal Data, can submit a complaint to the Office of the Commissioner for Personal Data Protection.

The Client can exercise any of the above rights by contacting the Company through email at dpo@hmvest.eu or by post at postal address: 61 Griva Digeni A&V COURT Flat 401 Agios Nikolas, 3101, Limassol

Security

The privacy and confidentiality of your personal information is of fundamental importance to us. We take all appropriate security measures to protect against unauthorised access to or unauthorised alteration, disclosure or destruction of data and personal information.

We restrict access to personal information to employees who need to know the specific information in order to operate, develop or improve our services. These individuals are bound by confidentiality and will be subject to penalties if they fail to meet these obligations.

Also the Personal Data can be shared only with the parties set out in the aforementioned Section of Disclosure of Personal Data.
The Personal Data that the Client provides in connection with opening an account (appropriateness test) with the Company are highly protected. This information can be accessed by the Client using

his/her selected password. This password must be careful kept by the Client and not be shared with any third party.

In addition this information is safely stored in the Company's servers that only authorized personnel have access to it through access rights. The Company encrypts all this information to prevent unauthorized parties from viewing or access such information.

Changes of Privacy Policy

The Company reserves the right to change or amend the Privacy policy without further notice to you, provided that the changes do not significantly reduce your rights under this Policy. If we make material changes to this policy, we will notify you by email or by means of a notice on our home page or by changing the version of the document including the date of the update which will be visible to the first page of this document. The latest and prevailing version of this Policy will at all times be available at www.hmvest.eu. Any revised Policy will be effective immediately upon posting on our Web Site.

Legal Disclaimer

The Company reserves the right to disclose your personally identifiable information as required by rules and regulations and when the Company believes that disclosure is necessary to protect our rights and/or to comply with a judicial proceeding, court order, or legal process served. The Company will not be liable for misuse or loss of personal information resulting from cookies on the Company's site(s) that the Company does not have access to or control over. The Company will not be liable for unlawful or unauthorized use of your personal information due to misuse or misplacement of your passwords, negligent or malicious.
Further information on Company's Privacy is available upon request from Company's offices at: Tel. +357 25 250025, or e-mail: dpo@hmvest.eu
Address:
61 Griva Digeni A&V COURT Flat 401 Agios Nikolas, 3101, Limassol
Website: www.hmvest.eu